

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHAREEF BOYKIN, KEESHA CLARK as MOTHER
AND NATURAL GUARDIAN OF MINOR M.C. and
KEEMONT REYNOLDS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ORKHAN MAMEDOV, Shield NO. 1393 and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 24, 2022

Yours, etc.

Cary London

Cary London, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER ORKHAN MAMEDOV, Housing PSA 2, 560 Sutter Avenue, Brooklyn, NY
11207

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

SHAREEF BOYKIN, KEESHA CLARK as MOTHER
AND NATURAL GUARDIAN OF MINOR M.C. and
KEEMONT REYNOLDS,

INDEX NO.:

VERIFIED COMPLAINT

Plaintiff,

-against-

JURY TRIAL DEMANDED

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ORKHAN MAMEDOV, Shield NO. 1393 and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Defendants.

----- X

Plaintiff SHAREEF BOYKIN, KEESHA CLARK, as mother and natural guardian of minor M.C., and KEEMONT REYNOLDS, by their attorneys, Shulman-Hill, PLLC, as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 3, 2021, at approximately 5:00 p.m., Plaintiff Shareef Boykin, minor M.C., and Keemont Reynolds, while lawfully in the vicinity of 180 Powell Street, County of Kings, New York, was subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant Police Officers. In doing so, defendant Police Officers injured Plaintiff's arm, causing serious physical injury necessitating hospital treatment. Plaintiffs were deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and their constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiffs, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Shareef Boykin is a resident of the state of New York.

3. Plaintiff M.C. is a resident of the state of New York. Because M.C. is currently and was at the time of this incident a minor, M.C. brings this suit by his mother and natural guardian Keesha Clark.¹
4. Plaintiff Keemont Reynolds is a resident of the state of New York.
5. NYPD Police Officer Orkhan Mamedov is and was at all times relevant herein an Officer with the New York City Police Department.
6. NYPD Police Officer Orkhan Mamedov is being sued in their individual and official capacity.
7. Currently and at all times relevant herein, NYPD Police Officer Orkhan Mamedov was assigned to Housing PSA2 of the NYPD.
8. NYPD Police Officers John Does Numbers One through ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
9. NYPD Police Officers John Does Numbers One through ten are being sued in their individual and official capacities.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.
13. In accordance with New York State law and General Municipal Law Section 50, Plaintiff Shareef Boykin testified at a hearing held pursuant to General Municipal Law Section 50-H on February 18, 2022.

¹ Plaintiff Keesha Clark as mother and natural guardian of minor M.C. will be referred to as "M.C." or "Plaintiff M.C." throughout this complaint for clarity.

14. In accordance with New York State law and General Municipal Law Section 50, Plaintiff M.C. testified at a hearing held pursuant to General Municipal Law Section 50-H on February 15, 2022.
15. In accordance with New York State law and General Municipal Law Section 50, Plaintiff Keemont Reynolds testified at a hearing held pursuant to General Municipal Law Section 50-H on February 18, 2022.
16. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.
17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On October 3, 2021, at approximately 5:00 p.m., Plaintiffs was present in the vicinity of 180 Powell Steet, County of Kings, New York, when the defendant Police Officers unlawfully assaulted Plaintiffs without legal justification.
20. Plaintiff Boykin was exiting the apartment building at the above location at or around 5:00PM.
21. As Plaintiff Boykin exited the apartment, Plaintiff Boykin was assaulted by approximately six male individuals. More assailants joined soon after.
22. As Plaintiff Boykin was being assaulted, multiple Defendant Officers stood by a few feet away watching the assault without taking action to assist.
23. When the men finished their assault on Plaintiff Boykin, Plaintiff Boykin picked himself off the ground and was joined by Plaintiffs and Plaintiff M.C.'s mother, Keesha Clark.
24. Four Defendant Officers approached Plaintiff Boykin, Plaintiff Clark, Plaintiff Reynolds, and Plaintiff Clark's mother and sister.
25. The four Defendant Officers escorted the group to Keesha Clark's vehicle.
26. When the group of assailants, now numbering approximately 50 inviduals, noticed the Defendant Officers escorting the group they began to chase after them.
27. Other Defendant Officers approached to assist in escorting the group.

28. The group was unable to enter the vehicle because Keesha had lost the keys during the commotion.
29. The group proceeded towards the train station without Keesha who stayed behind to locate the keys.
30. As the group walked towards the train station, Defendant Officers approached Plaintiffs without reason or justification and began to arrest them and use excessive force against them.

Plaintiff M.C.

31. Defendant officers then tackled Plaintiff M.C.
32. A Defendant Officer grabbed Plaintiff M.C.'s legs.
33. Another Defendant Officer pushed Plaintiff M.C. into the ground.
34. Two Defendant Officers dragged Plaintiff M.C. across the floor.
35. Another Defendant Officer shoved his knee into Plaintiff M.C. lower spine.
36. Another Defendant Officer punched Plaintiff M.C. in the face approximately seven to eight times.
37. Another Defendant Officer ordered Plaintiff M.C. to put his hand behind his back.
38. Plaintiff M.C. complied and the Defendant Officer twisted M.C.'s hands in opposite directions deliberately, thereby causing Plaintiff M.C. pain and injury.
39. Plaintiff M.C. was placed into a vehicle and transported to the 73rd Precinct.
40. Upon arrival to the 73rd Precinct, the Plaintiffs were all placed into holding cells.
41. While Plaintiffs were in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiffs committed a crime.
42. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiff M.C. was engaged in Disorderly Conduct.
43. The defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiff Reynolds was Resisting Arrest and other related charges.
44. The defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiff Boykin was engaged in Disorderly Conduct.

45. Plaintiff M.C. was brought upstairs and questioned for approximately an hour and a half.
46. During the questioning, the Defendant Officer that punched Plaintiff M.C. entered the room. The Defendant Officer screamed that he had to punch Plaintiff M.C. because he resisted.
47. Plaintiff M.C. calmly responded that there was no point in hitting him because he had not resisted.
48. The Defendant Officer continued to scream at Plaintiff M.C.
49. After the questioning Plaintiff M.C. was taken upstairs for approximately 40 minutes.
50. Afterwards, Plaintiff M.C. was taken to the youth room downstairs where he remained for approximately 20 minute before he was released.
51. Plaintiff M.C. was in custody for approximately 3 hours before he was released with a desk appearance ticket.
52. Plaintiff M.C.'s mother was not informed about her son's release and the minor walked home alone.
53. Defendant officers knew that only a few hours prior, Plaintiff M.C. had been threatened by a group of 50 or more people directly outside his residence, and yet they neither informed his mother nor took any steps to protect Plaintiff M.C.
54. Plaintiff M.C. suffered exteme anxiety and fear upon his release, and took extreme precautions and a variety of different routes in order to get home safely.
55. After Plaintiff M.C.'s release from unlawful custody, his mother to Coney Island Hospital for medical treatment.
56. Plaintiff M.C.'s jaw was swollen and a cast was placed on his entire right arm.
57. Plaintiff M.C. was prescribed physical threapy and is waiting for the doctor to call to schedule an appointment.
58. Plaintiff M.C. missed approximately five days of school due to doctor appointments.
59. On October 22, 2021, Plaintiff M.C. went to his scheduled DAT court date and was told his case was not ready and to go home.
60. On information and belief, Plaintiff M.C.'s case was declined to be prosecuted by the Kings County District Attorney's Office.

Plaintiff Reynolds

61. During the course of falsely arresting Plaintiff Reynolds, Defendant Officers tasered him.
62. After tasing him, three Defendant Officers proceeded to tackle Plaintiff Reynolds to the ground.
63. When Plaintiff Reynolds was already on the ground and subdued, Defendant Officers tased Plaintiff Reynolds again.
64. Defendant Officers tightly handcuffed Plaintiff Reynolds' wrists and proceeded to drag him to their vehicle.
65. As Plaintiff Reynolds was being dragged to the vehicle, Defendant Officers were twisting his wrists deliberately, thereby causing him pain and injury.
66. Defendant Officers roughly threw Plaintiff Reynolds into the vehicle.
67. Plaintiff Reynolds was transported to the 73rd Precinct, where he was placed in a holding cell.
68. Plaintiff Reynolds was left handcuffed in his cell.
69. Plaintiff Reynolds remained handcuffed when he was taken upstairs to be questioned.
70. Plaintiff Reynolds remained handcuffed when he was returned to his cell after questioning.
71. Plaintiff Reynolds remained at the 73rd Precinct overnight, where he he slept in handcuffs, before being transferred to Central Booking at 11:00 a.m.
72. Plaintiff Reynolds remained in custody for approximately 19 hours.
73. Plaintiff Reynolds appeared before the judge and was released on his own recognizance.
74. Upon his release, Plaintiff Reynolds went to Coney Island Hospital for medical treatment.
75. Plaintiff Reynolds' left shoulder was numb, his back hurt, and he could not sleep.
76. Doctors performed an x-ray on Plaintiff Reynolds, placed cream on his cuts, and placed ice on his back and neck.
77. Plaintiff Reynolds had to appear in court multiple times before his case was dismissed and sealed on January 10, 2022.

Plaintiff Boykin

78. During the course of falsely arresting Plaintiff Boykin, Defendant Officers shoved him against a wall.

79. Defendant Officers roughly handcuffed Plaintiff Boykin and placed him into a vehicle.
80. Plaintiff Boykins was transported to the 73rd Precinct, where he was placed in a holding cell.
81. Plaintiff Boykin was later removed from his cell for questioning.
82. Defendant Officers asked Plaintiff Boykins why he was being assaulted.
83. Plaintiff Boykins remained at the 73rd Precinct for approximately 8 hours before he was released with a desk appearance ticket.
84. On October 22, 2021, Plaintiffs Boykins case was declined to be prosecuted by the King County District Attorney's Office.
85. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.
86. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiffs or from a location that was in Plaintiff's possession, custody, or control.
87. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.
88. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.
89. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiffs to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

90. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
91. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

92. The conduct of defendants in approaching, stopping, and grabbing Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
93. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.
94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

96. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
97. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
98. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

99. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
100. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.
101. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

102. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

103. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

104. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiffs' Fourth And Fourteenth Amendment Rights: Excessive Force

105. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

106. The use of excessive force by defendants by, amongst other things, tasing Plaintiff Reynolds, punching Plaintiff M.C. in the face multiple times, and roughly arresting and slamming Plaintiff Boykin against a wall, constituted objectively unreasonable physical seizures of Plaintiffs in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

107. Defendants were at all times agents, servants, and employees acting within the scope of thier employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Assault

108. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

109. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiffs, that such acts caused apprehension of such contact in the Plaintiffs.

110. As a direct and proximate result of such acts, defendants deprived Plaintiffs of thier rights under the laws of the State of New York.

111. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

112. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

113. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Battery

114. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

115. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiffs, when they, in a hostile and/or offensive manner tased Plaintiffs, roughly handcuffing, grabbing and tackled Plaintiffs effecting an arrest of Plaintiffs without their consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiffs and caused such battery.

116. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

117. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

118. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

119. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

120. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

121. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

122. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION**Failure to Intervene**

123. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
124. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
125. Defendants failed to intervene to prevent the unlawful conduct described herein.
126. As a result of the foregoing, Plaintiffs suffered serious, debilitating injury, their liberty was restricted for an extended period of time, they was put in fear of their safety, and they were humiliated and subject to other physical constraints.
127. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.
128. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
129. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
130. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION**Violation of Fourth And Fourteenth Amendment Rights:****Denial of Right to Fair Trial/Due Process**

131. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
132. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.
133. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.
134. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

135. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.
136. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.
137. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
138. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
139. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: economic, emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

140. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
141. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.
142. Defendants commenced and continued a criminal proceeding against Plaintiff.
143. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for each of the charges for which they were prosecuted.
144. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

145. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
146. Defendants despite being aware that Plaintiffs were suffering severe injury and needed treatment from medical professionals, delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

147. The delay in medical treatment to Plaintiff's injuries resulted in permanent and increased severity of the injuries that were suffered by Plaintiffs that would have been prevented if Plaintiffs received treatment in a timely manner.
148. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.
149. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
150. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
151. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

152. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
153. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
154. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
155. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately 3,8, and 19 hours respectively.
156. Defendant Officers further used excessive force against Plaintiffs by tasing them, injuring their arm and punching them, and tackling them to the ground.
157. By reason of the acts and omissions by Defendants described above, Plaintiffs endured physical and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION

**Individual Defendant Officer's Failure to Intervene in Violation
of Plaintiff's AC 8-802 Rights**

158. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
159. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
160. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
161. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
162. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.
163. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

**City-Employer's Liability for Defendant Officer's Violation of
Plaintiff's AC 8-802 Rights**

164. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.
165. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.
166. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.
167. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
168. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use

of excessive force regardless of whether such force is used in connection with a search or seizure.

169. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 3,8, and 19 hours respectively.

170. Defendant Officers further used excessive force against Plaintiffs by tasing them, injuring their arm and punching them, and tackling them to the ground.

171. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

172. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

173. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

174. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

175. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

176. Defendant Officers had a duty to protect Plaintiffs from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

177. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

178. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

179. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION**Violation of Article I, § 12 of the New York State Constitution**

180. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

181. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

182. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

183. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

184. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

185. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff SHAREEF BOYKIN, M.C., and KEEMONT REYNOLDS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*

Dated: New York, New York
May 24, 2022

By: Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER ORKHAN MAMEDOV, Housing PSA 2, 560 Sutter Avenue, Brooklyn, NY
11207

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 24, 2022


CARY LONDON